

" must be liberally interpreted." *Smith vs. Smith*, 14 Jurist, 518.

As to service abroad of notice of motion ;

The 22nd Order of May, 1850, giving the Court power to order the service of the subpoena out of the jurisdiction, says nothing of the notice of motion for a reference in cases under the 77th Order. The Court would probably, however, permit such service on such a case being made out as to authorise the service of a subpoena abroad, in accordance with *M. Coy v. Cross*, 14 Jurist, 613, where the summons issued on a claim was ordered to be so served, though not strictly within the Orders as to absent defendants. The subpoena under the above Orders 5 and 6 of 1851, might, with still more reason, be ordered to be served according to the 22nd Order of 1850, for it is to all intents and purposes a writ of similar effect to the subpoena obtained on filing a bill.

and subpoena issued under Master's Order for new parties.

Case as to affidavit in answer.

In one case, it is said, that the affidavit in answer to the application for a reference " must clearly be entered as an answer or as evidence, or in a manner analogous to both." *Hubbard v. Child*, 14 Jurist, 545. It is here taken as an affidavit, see *Ante*. In *Hubbard v. Child*, the defendant, an Executor, made an affidavit on the subject of the account. The account was ordered, but costs reserved. The inference is, on this latter point, that it would be clearly regular for the Court here to reserve costs, in making an Order for a reference. And so it seemed to be conceded, provided a proper case was made on the affidavits for reserving costs. *Gooderham v. De Grassi*, not yet reported, where the costs were reserved, the defendant, a mortgagor, swearing that the assignee of the mortgagee had received rents and profits, sufficient to have paid off the mortgage.

Reserving costs ;

Regular, under 77th Order.

These appear to be all the cases as yet decided, which can be of any service in throwing light upon the construction to be given to the New Orders here.

Country practice.

We now proceed to the Orders under which the business of the Registrar's and Master's Offices is to be done, to a great extent, by Deputies in the country. This is

considered a not, so far

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Deputy I shall perform manner, and are performed and all orders the Master regulation of applicable to respectively required to to the Master tion to similar and Deputy

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